

Application for Permission and Review of Family Justice Manager Order or Direction Form 9

Provincial Court Family Court Rules
Rule 58

This Application for Permission and Review of Family Manager Order or Direction sets out the details of a request for permission to seek review of an order or direction made by a family justice manager that a person is applying for.

COURT STAMP

Registry location:

Court file number:

Document number:

For registry use only

Please read before completing the form:

- This application is to be used to ask permission to seek review of an order or direction made by a family justice manager and must be filed within 14 days after the date the order or direction was made.
- For guidance filling in this form, please read the guidebook. The guide is available from your local court registry or online at www.gov.bc.ca/court-forms.

Part 1 | About the parties

1. My **full name** is: Full name of party
- My **date of birth** is: (dd/mmm/yyyy)
2. The **other party's full name** is:
- Their **date of birth** (dd/mmm/yyyy) is:
- ☐ There is an additional party.
- The **additional party's** full name is:
- Their **date of birth** (dd/mmm/yyyy) is:



Copy the party information from a filed document in your case. It should match.

Part 2 | Notice of the application

3. ☐ I understand I **must give notice** of this application to each other party, including any other person who may be directly affected by the order.
- To give notice, they must be served** with the application and supporting documents **at least 7 days before** the date of the court appearance **unless** the court allows the application to be made without notice or with less than 7 days' notice.



For more information about serving court documents, see the guidebook.

Part 3 | About your court appearance

For registry or judicial case manager use only

The application, which requires a court appearance, will be heard by the court

on at a.m./p.m.

date time

☐ in person at

court location

☐ by another method of attendance, as specified

Do not attend the courthouse in person. The registry will send within 24 hours before the hearing date noted above the link to connect by MS Teams, including a dial-in conferencing number to be used by any party that is unable to use MS Teams or has problems with their video connection. If you have not provided your email address or telephone number to the registry on your Notice of Address Change ([Form 46](#)), you must contact the registry to obtain the MS Teams conference information.



The registry or judicial case manager will work with you to schedule a date for the court appearance and will fill in the actual date and method of attendance on the form. Be prepared to talk about your availability if there are options for dates.

NOTE TO THE OTHER PARTY:

If you do not attend court on the date and time scheduled for the court appearance, the court may make an order in your absence.

IMPORTANT INFORMATION ABOUT YOUR APPEARANCE

What do parties need to know about attending by another method other than in person?

If your notice indicates that you are to attend by another method of attendance, parties, including the judge, will attend using the Microsoft Teams audio- and video-conferencing (video) platform. **Do not attend the courthouse in person.** Parties will receive remote MS Teams appearance details within 24 hours prior to the appearance, this notification is sent to you by email.

Microsoft Teams allows participants to join the conference using video or audio from a desktop, laptop, tablet, or smartphone, or to dial-in to a proceeding from a telephone. **If you are appearing by video**, please ensure that you have downloaded Microsoft Teams or have the latest version of Google Chrome or Microsoft Edge.

If you received this Notice by mail and intend to appear using video or audio from a desktop, laptop, tablet, or smartphone, and you did not provide an email address for service, please file an Notice of Address Change (PCFR Form 46), with the court registry that includes your email address and the court registry will send you the MS Teams meeting invite within 24 hours prior to your appearance.

The link and dial up information may be shared with your lawyer if you have retained counsel; and with your client if you are counsel.

Please do not forward or share the MS Teams link or dial up information to any unauthorized parties.

Preparing for your Family Court Appearance

Legal Aid BC - Family Law Legal Advice

If you do not have a lawyer for your family law matter, visit <https://www.familylawinbc.ca/court-notice> to find out about **free in person and remote legal advice services** that you may be eligible for that can help you prepare for your court date. Contact the advice services at least three weeks before your court date or as soon as you receive this notice.

If you are unable to access the internet, contact the Family LawLINE at 604-408-2172 in Greater Vancouver or 1-866-577-2525 elsewhere in BC.

Family Justice Services

[Family justice counsellors](#) provide services to British Columbians going through separation and divorce and are specially trained to help families resolve their issues about guardianship, parenting arrangements, contact, support and companion animals. There is no charge for their services. All services are available in-person as well as virtually (through telephone and videoconference) across the province. For more information, you can call [1-844-747-3963] or contact the [Family Justice Centre or Justice Access Centre](#) closest to you. For more information about Family Justice Services Division, go to www.gov.bc.ca/family-justice-services-division.

Society for Children and Youth of BC Child and Youth Legal Centre

Free legal assistance directly for children and youth. Services may include legal advice and information, referral, or full representation, depending on circumstances. Availability and wait times may vary. Services are for children and youth who want legal assistance, are able to express their views and preferences, and who can instruct a lawyer.

For more information: <https://scyofbc.org/child-youth-legal-centre/>
Contact the Child and Youth Legal Centre cylc@scyofbc.org - (778)-657-5544

Interpreter

The court provides interpreters for family proceedings in provincial court. If you require an interpreter, please advise the registry as soon as possible. This link includes all court locations (address and phone numbers): www.gov.bc.ca/courthouselocations

Before the scheduled hearing date, please visit the Provincial Court website at <https://www.provincialcourt.bc.ca> and review:

- *Policy on Use of Electronic Devices in Courtrooms and Access to Court Proceedings Policy* (there is a general prohibition on the recording or broadcasting of court proceedings unless authorized by the Court and there are penalties for breach)
- *Rules for Remote Listening or Participation* (for etiquette and directions on connecting remotely)
- *NP 24 Form of Address for Parties and Lawyers* (provide the judge or justice with each person's name, title (e.g. "Mr./ Ms./Mx./Counsel Jones") and pronouns to be used in the proceeding)

If you are unable to dial-in or are dropped from the appearance immediately call the court registry.

Part 4 | About the request

4. ☐ I am **applying for permission** of a judge **to seek review of the order or direction** of a family justice manager dated [redacted] (see attached copy of **order or direction**). (dd/mm/yyyy)
5. I am making an application for review of the order or direction for the following reason(s):



You must attach a copy of the order or direction to this application for filing.



As set out in Rule 58, in granting permission for review, a judge may consider if:

- the order or direction conflicts with any other order or direction in respect of the parties,
- the order or direction is correct, and
- the proposed review involves matters of sufficient importance

Part 5 | Address for service

- 6. My address for service** of court documents and contact information is:
You must provide an address for service and contact number, but it does not have to be your own if you don't want to

Address:		
City:	Province:	Postal Code:
Email:		Telephone:
Lawyer's name and firm name (if applicable):		



For more information about how this information will be used and who will have access to it, see the guidebook.